

death the surviving executor contracted for the sale of the estate. The Vice-Chancellor of England held that, after so long a lapse of time from the testator's death, the purchaser had a right to ask if * the debts had been paid, and if [*459] he received no answer, it amounted to notice that they had been paid, and he must see to the application of his purchase-money. The V. C. observed, "When the objection is made by the purchaser that the executors cannot make a good title because all the debts have been paid, *if the question is put by him simply, are there or are there not any debts remaining unpaid, he has a right to an answer*" (a). And on a subsequent day he observed, "Here the purchaser has asked the executor whether any of the testator's debts were unpaid at the date of the contract, *and the executor refused to give him an answer*. Under these circumstances, if it should turn out that all debts were paid, I should hold that the purchaser had notice of that fact, and that he was bound to see that his purchase-money was properly applied" (b).

It is evident that this doctrine was not in accordance with former decisions, and the cause was carried upon appeal to the Lord Chancellor, when the decision below was reversed (c). Lord Lyndhurst said, "If the purchaser had notice that the vendor intended to commit a breach of trust, and was selling the estate for that purpose, he would, by purchasing under such circumstances, be concurring in the breach of trust, and

(a) 12 Sim. 537; see *Sabin v. Heape*, 27 Beav. 553. In the case of *A. Solomon, vendor, and F. Davey, purchaser*, under the 9th section of 37 & 38 Vict. c. 78, V. C. Hall decided that the vendor was bound to answer the purchaser's inquiry "whether the vendor is or her solicitors are aware of any judgments, settlements, mortgages, charges, or incumbrances of any description affecting the property not disclosed by the abstract of the vendor's title." But the V. C. added that he "must not be considered as altogether approving of the requisition being made in the form above-mentioned. The answer might lead to the disclosure of what the pur-

chaser would rather not know. The requisition should, he thought, be added to, thus, 'and which, if remaining undisclosed might prejudicially affect the purchaser,'" March, 1875. [But this view has since been overruled by the Court of Appeal in the case of *Re Ford and Hill*, 10 Ch. D. 365, where it was held that the purchaser was not entitled to make any such requisition at all.]

(b) 12 Sim. 542.

(c) 1 Ph. 717; see *Stroughill v. Anstey*, 1 De G. M. & G. 653; *Mather v. Norton*, 16 Jur. 309; [*Re Tanqueray-Willlaume and Landau*, 20 Ch. D. 465.]